

ORDINANCE NO. 09-26

AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF DELRAY BEACH, FLORIDA, AMENDING THE LAND DEVELOPMENT REGULATIONS OF THE CITY OF DELRAY BEACH CODE OF ORDINANCES APPENDIX A, "DEFINITIONS" TO REMOVE THE DEFINITIONS FOR AUTOMATED EXTERNAL DEFIBRILLATOR AND BLEEDING CONTROL KIT; PROVIDING A CONFLICTS CLAUSE, A SEVERABILITY CLAUSE, AUTHORITY TO CODIFY, PROVIDING AN EFFECTIVE DATE AND FOR OTHER PURPOSES.

WHEREAS, the City Commission adopted Ordinance No. 11-24 on June 18, 2024 amending the Delray Beach Code of Ordinances to require defibrillators and bleeding control kits throughout the City and providing the minimum standards for their use, maintenance, and installation; and

WHEREAS, the definitions of "Automated External Defibrillator" and "Bleeding Control Kit" were inadvertently included in Appendix A to the Land Development Regulations while they should have been included in the Code of Ordinances; and

WHEREAS, this Ordinance is intended to correct this error; and

WHEREAS, the City Commission determines that this Ordinance is in the best interest and promotes the health, safety, and welfare of the citizens, residents, and businesses of the City of Delray Beach.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COMMISSION OF THE CITY OF DELRAY BEACH, FLORIDA, AS FOLLOWS:

Section 1. The above recitals are true and correct and are hereby incorporated into this Ordinance as if fully restated herein.

Section 2. "Appendix A - Definitions" of the Land Development Regulations of the City of Delray Beach, Florida is hereby amended as follows:

Appendix A- DEFINITIONS

The following words, terms and phrases, when used in these Land Development Regulations, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

[...]

~~AUTOMATED EXTERNAL DEFIBRILLATOR: A lifesaving device that is:~~

- ~~1. Commercially distributed in accordance with the Federal Food, Drug, and Cosmetic Act;~~

2. ~~Is capable of recognizing the presence or absence of ventricular fibrillation and is capable of determining without intervention by the user of the device whether defibrillation should be performed; and~~
3. ~~Upon determining that defibrillation should be performed, is able to deliver an electrical shock to an individual.~~

[...]

~~BLEEDING CONTROL KIT: A collection of equipment specified by the fire department and housed in a container that displays the universal medical symbol that is used to attempt to control bleeding from a patient who has suffered a traumatic injury. The fire department may update the list of equipment as necessary.~~

Section 3. Should any section or provision of this Ordinance or any portion thereof, any paragraph, sentence, or word be declared by a Court of competent jurisdiction to be invalid, such decision shall not affect the validity of the remainder hereof as a whole or part thereof other than the part declared to be invalid.

Section 4. All ordinances or parts of ordinances in conflict herewith be and the same are hereby repealed.

Section 5. Specific authority is hereby given to the City Clerk to codify this Ordinance.

Section 6. This Ordinance shall become effective and enforceable eighteen months after its passage on second and final reading.

PASSED AND ADOPTED in regular session on second and final reading on this 3rd day of February, 2026.

ATTEST:

Alexis Givings
Alexis Givings, City Clerk

Thomas F. Carney, Jr.
Thomas F. Carney, Jr., Mayor

First Reading January 6, 2026

Second Reading February 3, 2026

Approved as to form and legal sufficiency:

Lynn Geln
Lynn Geln, City Attorney





CITY OF DELRAY BEACH
CITY ATTORNEY'S OFFICE
200 NW 1ST Avenue, Delray Beach, FL 33444
561-243-7090



Legal Review Form:
Ordinances

To be Completed by Requesting Department: City Attorney's Office

Date of Submission: 12.9.25

Submitted by: Kelly Brandon

Ordinance No: 09-26

Caption:

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Anticipated 1st Reading Date:

Anticipated 2nd Reading Date:

Note: Business Impact Estimate Form must be included with ordinance.

To be Complete by City Attorney's Office:



This document is approved as to form and legal sufficiency as submitted.



This document is not approved as to form and legal sufficiency for the following reason(s):

Please resubmit with the following changes:

Kelly Brandon

Attorney